User Agreement

Access to and use of this website is conditional upon your acceptance of these terms and conditions. Please read the following terms and conditions closely before using our website. If you do not agree with any part of these terms and conditions, you must not use this website.

Any use of the **www.slaito.lk** website, or written communication with **Sri Lanka Association of Inbound Tour Operators**, for the purposes of travel arrangements, confirms that you are aged 18 or over and that you have read and fully accepted these terms and conditions. These terms and conditions are devised for the protection of all parties.

Booking Conditions

Sri Lanka Association of Inbound Tour Operators website is owned and operated by Sri Lanka Association of Inbound Tour Operators, with offices located at "The Ceylon Chamber of Commerce", 50, Navam Mawatha, Colombo 02, Sri Lanka.

Sri Lanka Association of Inbound Tour Operators deals with numerous Destination Management Companies (DMCs) in Sri Lanka in offering services through the **www.slaito.lk** website.

Sri Lanka Association of Inbound Tour Operators is authorized to collect the payment for the excursions provided by the Sri Lanka Association of Inbound Tour Operators in collaboration with their suppliers; DMCs.

When services are purchased or reservations are made through our website in addition to the terms and conditions contained herein the individual terms and conditions of these suppliers will also apply.

Customers are responsible for reading the supplier's terms and conditions including booking conditions which are available on request. You agree to abide by the terms and conditions of purchase imposed by any supplier with whom is your tour operated. You understand that any violation of any such supplier's conditions of purchase may result in cancellation of your reservations or purchases, in your being denied access to any hotels, in your forfeiting any monies paid for such reservations or purchases, and **Sri Lanka Association of Inbound Tour Operators** debiting your account for any costs we incur as a result of such violation. You will be completely responsible for all charges, fees, duties, taxes, and assessments arising out of your use of this website, and, without limitation, you will be responsible for all charges, fees, duties, taxes, and assessments arising out of transactions performed by others on your behalf, whether or not such uses were performed with your consent.

Nothing on this website constitutes an offer on our part or on the part of the suppliers. The matters detailed constitute an invitation to you to make an offer on the stated terms

to purchase arrangements featured. Our suppliers may accept or decline any such offer. All arrangements featured or referred to are at all times prior to specific confirmation subject to availability and no warranties, promises or representations are given as to availability.
Our Suppliers, DMCs will reserve hotels, accommodation and other required services at your request to make your excursion complete. Your reservation will become confirmed once you have sent an on-line confirmation and provided your credit card details, and paid the total amount due in full OR any required deposits and when we acknowledge receipt of your full payment OR deposit. In some cases an initial non-refundable deposit may be charged.

Booking Your Holiday

A booking is accepted only after we receive written confirmation from you along with full payment OR a non-refundable deposit of 10% of the value of the Travel Arrangements. (This may be waived solely at our discretion).
If the booking is made within 30 days of arrival in Sri Lanka, then full payment is required at the time of confirmation.
Full payment OR the payment of a deposit and your written confirmation will indicate an acceptance of these terms and conditions by you.

Final Payment

The balance of payment due for Your Travel Arrangements if any must be paid by you not later than 30 days before arrival in Sri Lanka; otherwise we may treat the booking as cancelled by you.

Methods of Payment

Payments for deposits and final monies for Travel Arrangements may be made either by 1) bank transfer or 2) credit card (Visa and Mastercard) If paid by bank transfer all additional charges and fees related to this will be borne by you.
If paying by credit card you can either pay through the secure internet payment gateway facility available on our website.
If paying by credit or debit card through the secure internet online payment gateway:-
Your payments are processed entirely on the Secure Payment Sites operated by the Central Bank of Sri Lanka Registered, The Hatton National Bank for Master and Visa card payments. Your card details are not received or stored by **Sri Lanka Association of Inbound Tour Operators or Suppliers (DMCs)** in any form, and when you place an order as a part of the checkout process you are automatically taken to the Hatton National Bank Secure Payment facility for Master and Visa card payments. Your credit card information will be securely transmitted to the Hatton National Bank transaction authorization using SSL 128-bit encryption. All payments are denominated in United State dollars (US$) SSL, security internet protocol known as Secure Socket Layer, uses connection-oriented end-to-end encryption to provide data confidentiality service and data integrity service for

application layer traffic between your web browser and the secured the Hatton National Bank payment gateway server. It provides data encryption, server and client authentication and message integrity between the client and the web server.
If you fail to meet the payment deadlines stated to you, we reserve the right to cancel your tentative booking and will inform you of this.

Price Policy

We offer our clients customised packages of land and / or air services using various suppliers. The price of Your Travel Arrangements is subjected to the possibility of changes and surcharges beyond the control of Us and may occur because of governmental action, currency exchange rate fluctuation and increases in suppliers' prices as an example. If the price of Your Travel Arrangements is increased by any matters outside our control then you must either pay the additional price to us when we request it or cancel Your Travel Arrangements in accordance with these Booking Conditions.
All prices are provided in United States dollars.

Amendments and Cancellations

We reserve the right to charge USD 100 per change in the event of you wishing to transfer to another tour, change a confirmed booking or change Your Travel Arrangements in any way. This is in addition to any cancellation or other charge levied by operators, suppliers or airlines. The charge applies whether or not we are successful in confirming the amended reservation.
While We will use Our best endeavours to provide all Travel Arrangements as confirmed, reasonable changes in the Travel Arrangements may be made without notice to You if deemed necessary or advisable by Us at Our discretion.
Cancellation of Your Travel Arrangements by You must be notified to us in writing, and will take effect the day we receive it. The following Penalties will apply dependent upon the number of days before Your Travel Arrangements commence:

- **10% of the advance payment will be Non Refundable in any case once the booking is confirmed with the payments**
- **No Shows & Cancellations within 01 to 10 days of the arrival date – 100% of the Invoice Value**
- **Cancellations within 11 to 20 days of the arrival date – 50% of the Invoice Value**
- **Cancellations within 21 to 30 days of the arrival date – 25% of the Invoice Value**
- **Cancellations beyond 31 days of the arrival date – to be decided by the hotel on case-by-case basis**

Commercial air flight and airfare cancellation charges will be incurred by you in accordance with Airline Tariff Regulations and will vary according to the type of airfare utilised.
Our cancellation provisions also hereby override any conflicting cancellation provisions set out by any individual operators or suppliers used by us.

No refund is available to you for cancellations after commencement of Your Travel Arrangements or on any services not used for any reason.
Cancellation policies differ according to each boutique property. A 100% non-refundable cancellation fee will be charged accordingly.

Health, Passport and Visas

It is your responsibility to ensure that you and other members of your party obtain the right inoculations and medical advice before you travel. Similarly, it is your responsibility to ensure that you and other members of your party have correct and valid passports, visas and have conformed to all other requirements pertaining to your travel arrangements before the holiday commences.
Should you require assistance on this matter we will be pleased to make recommendations. We will not be held responsible for you travelling without the correct travel documents.

International and Domestic Air Booking

Reconfirmation of flight bookings is your responsibility. As Travel Arrangements may be booked to connect with international and domestic air flights it is Your or the travellers responsibility to keep us updated as to flight times and numbers.

Travel Insurance

You are strongly recommended to take out personal travel insurance, at the time of booking, for all members of your party. It is your responsibility to ensure that the insurance you purchase is adequate. Booking acceptance shall be deemed to include your confirmation that you have taken out such insurance.

Responsibility

We will only accept liability for incidents that arise as a direct result of our proven negligence, or that of our suppliers, in respect of arrangements forming part of your holiday itinerary, in cases where all your holiday accommodation and transfers are arranged by us for the entire extent of your stay. This applies to illness, injury and/or death.
NOTE: WE DO NOT ACCEPT LIABILITY FOR THE NEGLIGENCE OF OUR SUPPLIERS IN ACCOMMODATION-ONLY BOOKINGS. IN ALL SUCH CASES WE ACT SOLELY AS A BOOKING AGENT AND ACCOMMODATION IS CHOSEN AT YOUR OWN RISK.
We act only as a co-ordinator in **instances where only part of the holiday itinerary is arranged by us** for all passengers (including You) with respect to services provided by certain underlying operators, including hotels, lodges, restaurants, road transport

providers, professional guides, air charter services, boating, rafting, kayaking, bush walking, trekking and climbing activities. All bookings with Us are therefore subject to the limitations of liability imposed by the underlying operators/suppliers involved in Your Travel Arrangements and **Sri Lanka Association of Inbound Tour Operators** cannot be held responsible for the failure of any component of the holiday for which we do not have direct responsibility. This includes any difficulty in finding hotels if customers choose to book accommodation-only deals and arrange their own transport.

There are circumstances where it is impossible to fulfill the contract as a result of war, the threat of war, riot, civil strife, industrial dispute, terrorist activity, natural or nuclear disasters, fire or adverse weather conditions and all similar events outside our control. In these circumstances we shall not be liable for compensation where we are forced to cancel, delay, curtail or change your holiday in any way or where our performance of the contract is affected or prevented. We assume no responsibility for any loss, damage to baggage, property or for injury illness or death or for any damages or claims however so caused arising directly or indirectly from accidents, loss or damage to person or property, delays, transport failures, strikes, war, force majeur, Acts of God etc. or any other loss arising from or pursuant to Your Travel Arrangements.

We accept responsibility for ensuring the holidays which you book with us are supplied as described and that the services we are contractually obliged to provide are to a reasonable standard.

We work with different operators and service providers for accommodation or other services and facilities which you will be using and changes may occur. On occasion especially during low season, certain facilities may not be open or available due to maintenance, weather conditions, power cuts, and lack of demand or for other reasons. In such circumstances we cannot be held responsible for advertised facilities being unavailable.

There may be instances where alternative accommodation or services may need to be provided, in such instances we will ensure this is of a similar or superior standard.

Breakages and Damages

You will be responsible for any breakages, losses or damage caused by you or a member of your party during your stay in the accommodation. It is your responsibility to put right the damage or to make full payment to the supplier before departure and to indemnify us against any losses, damages or claims made against us.

Behaviour

You are responsible for compliance with all relevant regulations governing carriage by air or any other mode of transport and your stay during your holiday. If in the opinion of our suppliers/service providers and/or guide representative your behaviour is disruptive or causing distress, injury or danger to other clients, our staff or any other third party, your holiday may be terminated and we shall not be responsible for any costs or claims that are incurred.

Severability

If any of these Booking Conditions are invalid or unenforceable then subject to law, all other provisions of these Booking Conditions shall be and continue to be valid and enforceable.

Arbitration

When your booking is confirmed with us, a contract between **Sri Lanka Association of Inbound Tour Operators** and / or you is constituted. That contract and these Booking Terms and Conditions shall be governed in all respects by the laws of Sri Lanka.

Complaints

We would wish to resolve amicably any reasonable complaint that we receive relating to the standard of your travel or accommodation arrangements. However, you must try to resolve any complaint immediately that you have with the supplier of the service direct (i.e. the accommodation owner, airline or individual service provider) while also at the same time keeping the **Sri Lanka Association of Inbound Tour Operators** representative and travel counselor who handled your booking informed of all such complaints as and when they arise.

If your complaint cannot be resolved locally you must follow this up by writing a formal complaint letter to us within one week of your return home incorporating all other relevant information. It is a condition of this agreement that you communicate any problem to the supplier of the service/s in question and inform the **Sri Lanka Association of Inbound Tour Operators** representative and travel counselor who handled your booking and if still not resolved then follow this up with a written complaint. If you fail to follow this simple procedure we cannot accept responsibility as we have been deprived of the opportunity to investigate and rectify the matter.

We are always looking for ways to improve our service and our products and as your feedback can help us to do this we will provide a Customer Survey for your completion.

Exclusion of Liability

Sri Lanka Association of Inbound Tour Operators does not guarantee that all information available is free from errors or omissions but we will use all reasonable endeavors to correct any errors or omissions once notified of them. Our opinions are our own. Whilst we rigorously strive for accuracy, these opinions are necessarily subjective to some degree. All recommendations, opinions expressed and prices regarding properties and/or destinations displayed are provided for guidance only. You agree as the user that the use of, or reliance upon, any of the content of the **Sri Lanka Association of Inbound Tour Operators** website, and in particular any content recommending any hotel, product or service, is done entirely at your risk. (Including content in subsequent itinerary documents

sent to you) Our website contains links to websites operated by parties other than the **Sri Lanka Association of Inbound Tour Operators**. Those links are provided to you for your reference and convenience only. We do not own or control the content of those websites and are not responsible for their content or your use of them.
We have endeavoured to portray and describe each hotel and/or service as best we can and also to provide the most up to date information through our website and other communications with you to the best of our knowledge.
We cannot be held liable for any discrepancies or differences that might arise between the content of our website (text, images etc), any communication sent to you (via email, fax etc) and the actual property you are accommodated at or the service you are extended.

Information provided by you

All information provided by you should be true and accurate. We will treat it confidentially and not forward it to any third party. We have a strict anti-fraud policy and take responsible steps to protect personal information such as credit card details.

Nature of Overseas Travel

Holidays offered by **Sri Lanka Association of Inbound Tour Operators** can range from luxury itineraries to programmes for the more budget-conscious. We will make every effort to ensure that our planning is meticulous. But amenities and infrastructure in Sri Lanka can at times be comparatively underdeveloped. Delays, moments of discomfort and risk can naturally occur in all travel. In the tropics, insects in rooms are common. Tourists booking any of our arrangements implicitly accept this as a fact of life. Clients are advised to take sensible precautions at all time, and before booking a holiday should take steps to familiarize themselves with up-to-date information.

SHOPPING

Sri Lanka Association of Inbound Tour Operators, under no circumstances, recommends or guarantees the value or the quality of any additional product not clearly itemized on the Travel itinerary which may be purchased during an itinerary arranged in part or whole by US, even in the case where the product may have been discussed between a client and an employee or representative of **Sri Lanka Association of Inbound Tour Operators**. Determining the value of a product is entirely the client's responsibility. **Sri Lanka Association of Inbound Tour Operators** has no duty to intervene in such circumstances and cannot be held responsible for subsequent complaints.

INDEMNIFICATION

You agree to defend and indemnify **Sri Lanka Association of Inbound Tour Operators**, its affiliates, and/or their respective suppliers and any of their officers, directors, employees and agents from and against any claims, causes of action, demands, recoveries, losses,

damages, fines, penalties or other costs or expenses of any kind or nature including but not limited to reasonable legal and accounting fees, brought by: (i) you or on your behalf in excess of the liability described above; or (ii) by third parties as a result of (a) your breach of this agreement or the documents referenced herein, (b) your violation of any law or the rights of a third party, or (c) your use of this website.

ELECTRONIC COMMUNICATIONS

You communicate with us electronically whenever you visit our website or send emails to us. You consent to receive communications from us electronically and by fax. You agree that all notices, disclosures, agreements and other communications that we provide to you electronically or by fax satisfy any legal requirements that communications be in writing.

Sri Lanka Association of Inbound Tour Operators makes no representations or warranties, and hereby excludes all warranties, express or implied, as to the quality, accuracy, feasibility or credibility of the content of the **Sri Lanka Association of Inbound Tour Operators** website or of any goods or services offered on the site. Moreover **Sri Lanka Association of Inbound Tour Operators** accepts no liability for any virus or any other type of electronic infection that may be transferred through the site. Under no circumstance will we be liable for any loss or damage caused by a user's reliance on information obtained through this site.

We do not take responsibility for consumer comments made in interactive areas of the website, but we do reserve the right to moderate them to comply with Sri Lankan law.

Copyright

The copyright and all other Intellectual Property rights in all of the material on this website are owned by **Sri Lanka Association of Inbound Tour Operators**. Copying of any part for commercial or business use strictly prohibited.

Governing Law and Jurisdiction

These terms and conditions are subject to the Laws of Sri Lanka.